

GDPR compliance report

Generated: 2026-05-02 22:15:13

Halted (P1): False

Overall score: 9%

Critical / Warning / Info: 32 / 10 / 0

Documents

- ../data/testing_files/md_files_post_gdpr/test1_Yelp.md

Chapter scores

Chapter	Score
Ch.2 – Principles	13%
Ch.3 – Rights of data subjects	6%
Ch.4 – Controller & processor	8%
Ch.5 – Transfers to third countries	13%
Ch.8 – Remedies, liability & penalties	0%
Ch.9 – Specific processing situations	0%

Top urgent gaps

- Art. 5 (Principles relating to processing): Accuracy: The policy does not explicitly state how inaccurate data will be rectified or erased.
- Art. 6 (Lawfulness of processing): No lawful basis for processing is stated in the provided policy excerpts, which is a critical gap under GDPR Article 6.
- Art. 7 (Conditions for consent): The policy does not explicitly state that consent must be 'freely given', 'specific', 'informed', or 'unambiguous'.

Scorecard

Art.	Chapter	Title	P	Score	Severity	Status
5	Ch.2 – Principles	Principles relating to processing	p2	36	warning	partial
6	Ch.2 – Principles	Lawfulness of processing	p2	0	critical	fail
7	Ch.2 – Principles	Conditions for consent	p2	0	critical	fail
8	Ch.2 – Principles	Child's consent	p3	0	critical	missing
9	Ch.2 – Principles	Special category data	p2	0	critical	fail
10	Ch.2 – Principles	Criminal convictions data	p3	0	critical	missing
11	Ch.2 – Principles	Processing without identification	p2	52	warning	partial
12	Ch.3 – Rights of data su	Transparency & modalities	p2	0	critical	fail
13	Ch.3 – Rights of data su	Info collected from data subject	p2	10	warning	partial
14	Ch.3 – Rights of data su	Info not obtained from data subject	p2	0	critical	fail
15	Ch.3 – Rights of data su	Right of access	p2	0	critical	fail
16	Ch.3 – Rights of data su	Right to rectification	p2	0	critical	fail
17	Ch.3 – Rights of data su	Right to erasure	p2	0	critical	fail
18	Ch.3 – Rights of data su	Right to restriction	p2	52	warning	partial
19	Ch.3 – Rights of data su	Notification on rectification/erasure	p3	0	critical	missing
20	Ch.3 – Rights of data su	Right to data portability	p2	0	critical	fail
21	Ch.3 – Rights of data su	Right to object	p2	0	critical	fail
22	Ch.3 – Rights of data su	Automated decision-making	p2	0	critical	fail
24	Ch.4 – Controller & proc	Responsibility of the controller	p2	36	warning	partial
25	Ch.4 – Controller & proc	Privacy by design and default	p3	0	critical	missing
26	Ch.4 – Controller & proc	Joint controllers	p3	70	warning	present (unverified)
27	Ch.4 – Controller & proc	Representatives (non-EU)	p3	0	critical	missing
28	Ch.4 – Controller & proc	Processor / DPA	p2	28	warning	partial
29	Ch.4 – Controller & proc	Processing under authority	p2	0	critical	fail
30	Ch.4 – Controller & proc	Records of processing (ROPA)	p2	0	critical	fail
32	Ch.4 – Controller & proc	Security of processing	p3	0	critical	missing
33	Ch.4 – Controller & proc	Breach notification to SA	p3	0	critical	missing
34	Ch.4 – Controller & proc	Breach communication to data subject	p3	0	critical	missing
35	Ch.4 – Controller & proc	DPIA	p3	0	critical	missing
37	Ch.4 – Controller & proc	DPO designation	p2	0	critical	fail
38	Ch.4 – Controller & proc	DPO position	p3	0	critical	missing
39	Ch.4 – Controller & proc	DPO tasks	p2	0	critical	fail
40	Ch.4 – Controller & proc	Codes of conduct	p3	0	critical	missing
42	Ch.4 – Controller & proc	Certification	p3	0	critical	missing
44	Ch.5 – Transfers to thir	General principle for transfers	p2	0	critical	fail
45	Ch.5 – Transfers to thir	Adequacy decision transfers	p2	52	warning	partial
46	Ch.5 – Transfers to thir	Transfers with safeguards	p3	0	critical	missing
47	Ch.5 – Transfers to thir	Binding corporate rules	p3	0	critical	missing
49	Ch.5 – Transfers to thir	Derogations	p4	—	warning	triggered (HIL)
77	Ch.8 – Remedies, liabili	Right to lodge a complaint	p2	0	critical	fail
85	Ch.9 – Specific process	Freedom of expression	p4	—	warning	triggered (HIL)
88	Ch.9 – Specific process	Employment context	p2	0	critical	fail

Scope (Art.2/3) + pipeline summary (raw JSON)

```
{
  "scope": {
    "applies": "yes",
    "reasons": [
      "The company has an establishment in the Union (Yelp Ireland Ltd.) and processes personal data of European Residents.",
      "The policy describes the collection, use, and disclosure of information in connection with the use of services offered through websites, communications, and mobile applications, which likely involves automated processing of personal data.",
      "The company offers services to users in the Union and monitors their behavior within the Union."
    ],
    "evidence": [
      "Yelp Ireland Ltd., a limited liability company established and resident under the laws of the Republic of Ireland, if you are a European Resident.",
      "\"European Resident\" means a resident of a country in the European Economic Area (\"EEA\") or Switzerland.",
      "This Privacy Policy describes our policies on the collection, use, and disclosure of information about you in connection with your use of our services, including those offered through our websites, communications (e.g., emails, phone calls, and texts), and mobile applications (collectively, the \"Service\").",
      "This Regulation applies to the processing of personal data in the context of the activities of an establishment of a controller or a processor in the Union, regardless of whether the processing takes place in the Union or not.",
      "This Regulation applies to the processing of personal data of data subjects who are in the Union by a controller or processor not established in the Union, where the processing activities are related to: - the offering of goods or services, irrespective of whether a payment of the data subject is required, to such data subjects in the Union; or - the monitoring of their behaviour as far as their behaviour takes place within the Union."
    ],
    "hil_required": false
  },
  "pipeline_summary": {
    "overall_score_pct": 14,
    "p2_score": 0.14,
    "p2_findings_total": 25,
    "p3_findings_total": 15,
    "p4_triggered_total": 2,
    "p4_articles_not_triggered": 4,
    "findings_total": 42,
    "hil_queue_total": 17
  },
  "computed_scoring": {
    "overall_score_pct": 9,
    "chapter_scores": {
      "Ch.2 - Principles": 13,
      "Ch.3 - Rights of data subjects": 6,
      "Ch.4 - Controller & processor": 8,
      "Ch.5 - Transfers to third countries": 13,
      "Ch.8 - Remedies, liability & penalties": 0,
      "Ch.9 - Specific processing situations": 0
    }
  },
  "severity_counts": {
    "critical": 32,
    "warning": 10,
    "info": 0
  }
}
```

Appendix — finding detail

Art. 5 — Principles relating to processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 36/100

Risk: medium

Gaps

- Accuracy: The policy does not explicitly state how inaccurate data will be rectified or erased.
- Storage Limitation: While the policy mentions data is stored 'long enough to process', it lacks specifics on how long or criteria for erasure beyond processing needs.
- Accountability: The policy does not detail the measures or processes in place to demonstrate compliance with Article 5 principles.

Evidence

- c2: We may collect, transmit, and store information about you in connection with your use of the Service, including any information you send to or through the Service. We use that information to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations. Even when we do not retain such information, it still must be transmitted to our servers initially and stored long enough to process.
- c3: When you create a Yelp account, we store and use the information you provide during that process, such as the first and last name you enter, email address, zip code, physical address, and any other information you may provide during the account creation process, such as a gender, phone number, or birth date.
- c4: Your account profile (e.g., first name, last initial, city, neighborhood, the month and year you created your Yelp account, profile photos and list of friends on Yelp) is also intended for public consumption, as is some of your other activity through the Service, like how you vote on other people's contributions (e.g., useful, funny, cool, helpful, or not helpful), which contributions you like, where you check-in (including when friends on Yelp tag you in their own check-ins), which contributions or users you follow, and which businesses you follow or bookmark. You can limit the public nature of some of these activities through your account settings .

Notes

The policy addresses lawfulness, fairness, transparency, purpose limitation, and data minimisation by outlining the types of data collected and the purposes for which it is used. However, it lacks specific details on accuracy, storage limitation, and accountability.

```
{
  "article_number": 5,
  "article_title": "Principles relating to processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "Accuracy: The policy does not explicitly state how inaccurate data will be rectified or erased.",
    "Storage Limitation: While the policy mentions data is stored 'long enough to process', it lacks specifics on how long or criteria for erasure beyond processing needs.",
    "Accountability: The policy does not detail the measures or processes in place to demonstrate compliance with Article 5 principles."
  ],
  "evidence": [
    "c2: We may collect, transmit, and store information about you in connection with your use of the Service, including any information you send to or through the Service. We use that information to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations. Even when we do not retain such information, it still must be transmitted to our servers initially and stored long enough to process.",
    "c3: When you create a Yelp account, we store and use the information you provide during
```


Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state that consent must be 'freely given', 'specific', 'informed', or 'unambiguous'.
- There is no clear mechanism described for how a data subject can withdraw their consent, nor is it stated that withdrawal should be as easy as giving consent.
- The policy does not clearly distinguish consent requests from other matters, as required by Article 7(2).
- There is no explicit mention that the performance of a contract or service is not conditional on consent for data processing not necessary for that contract/service, as per Article 7(4).

Evidence

- The policy states 'When you use the Service, you consent to our collection, use, and disclosure of information about you as described in this Privacy Policy.' (c1 194-1394). This statement is broad and does not detail the specific conditions for consent.
- The policy mentions managing messaging preferences through account settings (c5 4194-5394), but this is not framed as a withdrawal of consent for data processing.
- The policy indicates that users 'opt in' to receive messages from other users, businesses, and Yelp when signing up for an account or using certain features (c5 4194-5394), but this opt-in process is not detailed in terms of specificity or clarity.
- The policy discusses limiting the public nature of some activities through account settings (c4 3194-4394), which is related to privacy controls but not explicitly consent withdrawal.

Notes

The policy implies consent is given by using the service, which is too broad. It lacks the specificity, informed nature, unambiguousness, and ease of withdrawal required by Article 7. There's also no indication that consent is freely given, particularly in the context of service performance.

```
{
  "article_number": 7,
  "article_title": "Conditions for consent",
  "chapter": "Ch.2 - Principles",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state that consent must be 'freely given', 'specific', 'informed', or 'unambiguous'.",
    "There is no clear mechanism described for how a data subject can withdraw their consent, nor is it stated that withdrawal should be as easy as giving consent.",
    "The policy does not clearly distinguish consent requests from other matters, as required by Article 7(2).",
    "There is no explicit mention that the performance of a contract or service is not conditional on consent for data processing not necessary for that contract/service, as per Article 7(4).",
  ],
  "evidence": [
    "The policy states 'When you use the Service, you consent to our collection, use, and disclosure of information about you as described in this Privacy Policy.' (c1 194-1394). This statement is broad and does not detail the specific conditions for consent.",
    "The policy mentions managing messaging preferences through account settings (c5 4194-5394), but this is not framed as a withdrawal of consent for data processing.",
    "The policy indicates that users 'opt in' to receive messages from other users, businesses, and Yelp when signing up for an account or using certain features (c5 4194-5394), but this opt-in process is not detailed in terms of specificity or clarity.",
    "The policy discusses limiting the public nature of some activities through account settings (c4 3194-4394), which is related to privacy controls but not explicitly consent withdrawal."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy implies consent is given by using the service, which is too broad. It lacks the specificity, informed nature, unambiguousness, and ease of withdrawal required by Article 7. There's also no indication that consent is freely given, particularly in the context of service performance.",
  "article_material_used": "text"
}
```

Art. 8 — Child's consent

Priority: p3 Chapter: Ch.2 – Principles

Severity: critical Status: missing

Score: 0/100

Notes

The provided text defines 'consent' generally but does not specifically address the conditions for a child's consent or parental consent as required by GDPR Article 8. Therefore, the policy does not materially mention or address the specific topic of child's consent.

```
{
  "article_number": 8,
  "article_title": "Child's consent",
  "chapter": "Ch.2 - Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text defines 'consent' generally but does not specifically address the conditions for a child's consent or parental consent as required by GDPR Article 8. Therefore, the policy does not materially mention or address the specific topic of child's consent.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 9 — Special category data

Priority: p2 Chapter: Ch.2 – Principles

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not specify the lawful basis for processing sensitive personal data, particularly explicit consent or any of the derogations outlined in Article 9(2) of the GDPR. The guidance suggests verifying explicit consent or derogation, but this is not reflected in the policy itself. There is no mention of how specific purposes for processing are defined or documented.

Evidence

- No mention of Article 9 or special category data in the policy.
- No reference to explicit consent or derogations under Article 9(2).
- Absence of specific conditions or safeguards for processing sensitive data.

Notes

The policy fails to address the processing of special category data as defined by GDPR Article 9. There is a complete absence of information regarding the lawful basis for processing such data, which requires explicit consent or a specific derogation under Article 9(2). This represents a significant compliance gap.

```
{
  "article_number": 9,
  "article_title": "Special category data",
  "chapter": "Ch.2 - Principles",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not specify the lawful basis for processing sensitive personal data, particularly explicit consent or any of the derogations outlined in Article 9(2) of the GDPR. The guidance suggests verifying explicit consent or derogation, but this is not reflected in the policy itself. There is no mention of how specific purposes for processing are defined or documented."
  ],
  "evidence": [
    "No mention of Article 9 or special category data in the policy.",
    "No reference to explicit consent or derogations under Article 9(2).",
    "Absence of specific conditions or safeguards for processing sensitive data."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy fails to address the processing of special category data as defined by GDPR Article 9. There is a complete absence of information regarding the lawful basis for processing such data, which requires explicit consent or a specific derogation under Article 9(2). This represents a significant compliance gap.",
  "article_material_used": "text"
}
```

Art. 10 — Criminal convictions data

Priority: p3 Chapter: Ch.2 – Principles
Severity: critical Status: missing
Score: 0/100
Notes

The provided text contains only definitions from Article 4 of the GDPR and does not address Article 10 on criminal convictions data.

```
{
  "article_number": 10,
  "article_title": "Criminal convictions data",
  "chapter": "Ch.2 – Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains only definitions from Article 4 of the GDPR and does not address Article 10 on criminal convictions data.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 11 — Processing without identification

Priority: p2 Chapter: Ch.2 – Principles
Severity: warning Status: partial
Score: 52/100
Risk: low
Gaps

- The policy does not explicitly state how the controller will demonstrate that they are not in a position to identify the data subject. The policy also does not specify how the controller will inform the data subject if identification is not possible, or under what circumstances this notification might not be possible. The policy does not address the conditions under which Articles 15-20 would still apply if the data subject provides additional information for identification.

Evidence

- Article 11(1) states that if purposes for processing do not require identification, the controller is not obliged to maintain or acquire additional information for identification.
- Article 11(2) states that if the controller cannot identify the data subject, they should inform them if possible. It also notes that rights under Articles 15-20 may still apply if the data subject provides identifying information.

Notes

The policy references Article 11, which allows for processing without identification when not required for the purpose. However, it lacks detail on the practical implementation of demonstrating and communicating this inability to identify, and the conditions for applying data subject rights in such scenarios.

```
{
  "article_number": 11,
  "article_title": "Processing without identification",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state how the controller will demonstrate that they are not in a position to identify the data subject. The policy also does not specify how the controller will inform the data subject if identification is not possible, or under what circumstances this notification might not be possible. The policy does not address the conditions under which Articles 15-20 would still apply if the data subject provides additional information for identification."
  ],
  "evidence": [
    "Article 11(1) states that if purposes for processing do not require identification, the controller is not obliged to maintain or acquire additional information for identification.",
    "Article 11(2) states that if the controller cannot identify the data subject, they should inform them if possible. It also notes that rights under Articles 15-20 may still apply if the data subject provides identifying information."
  ],
  "risk": "low",
}
```



```

    "needs_human_review": false,
    "notes": "The policy references Article 11, which allows for processing without
identification when not required for the purpose. However, it lacks detail on the practical
implementation of demonstrating and communicating this inability to identify, and the
conditions for applying data subject rights in such scenarios.",
    "article_material_used": "text"
}

```

Art. 12 — Transparency & modalities

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not mention the commitment to respond within one month, nor the possibility of a two-month extension for complex requests.
- The policy does not explicitly state that information and actions related to data subject rights requests will be provided free of charge, unless requests are manifestly unfounded or excessive.
- The policy does not detail the process for handling requests that are manifestly unfounded or excessive, specifically regarding charging a fee or refusing the request.
- The policy does not address the provision of information on reasons for not taking action on a request, nor the right to lodge a complaint with a supervisory authority or seek judicial remedy, as required by Article 12(4).

Evidence

- {policy_chunk_id: 'c0 0-194'}
- {policy_chunk_id: 'c1 194-1394'}
- {policy_chunk_id: 'c2 1194-2394'}
- {policy_chunk_id: 'c3 2194-3394'}
- {policy_chunk_id: 'c4 3194-4394'}
- {policy_chunk_id: 'c5 4194-5394'}

Notes

The policy is missing critical elements of Article 12 regarding response times, free of charge provisions, and information on action/inaction for data subject requests. While it touches on transparency and accessibility, it does not cover the procedural requirements for fulfilling requests within the stipulated timelines and conditions.

```

{
  "article_number": 12,
  "article_title": "Transparency & modalities",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not mention the commitment to respond within one month, nor the
possibility of a two-month extension for complex requests.",
    "The policy does not explicitly state that information and actions related to data subject
rights requests will be provided free of charge, unless requests are manifestly unfounded or
excessive.",
    "The policy does not detail the process for handling requests that are manifestly unfounded
or excessive, specifically regarding charging a fee or refusing the request.",
    "The policy does not address the provision of information on reasons for not taking action
on a request, nor the right to lodge a complaint with a supervisory authority or seek judicial
remedy, as required by Article 12(4).",
  ],
  "evidence": [
    {
      "policy_chunk_id": "c0 0-194"
    },
    {
      "policy_chunk_id": "c1 194-1394"
    },
    {
      "policy_chunk_id": "c2 1194-2394"
    },
    {
      "policy_chunk_id": "c3 2194-3394"
    },
    {
      "policy_chunk_id": "c4 3194-4394"
    },
  ],
}

```

```

    {
      "policy_chunk_id": "c5 4194-5394"
    }
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy is missing critical elements of Article 12 regarding response times, free of charge provisions, and information on action/inaction for data subject requests. While it touches on transparency and accessibility, it does not cover the procedural requirements for fulfilling requests within the stipulated timelines and conditions.",
  "article_material_used": "text"
}

```

Art. 13 — Info collected from data subject

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 10/100

Risk: high

Gaps

- Controller's representative details not found.
- DPO contact details not found.
- Legal basis for processing not explicitly stated.
- Retention period or criteria for determining it not specified.
- Specific categories of recipients not detailed.
- Information on data transfer to third countries or international organizations missing.
- Details on the right to data portability not found.
- Information about the existence of the right to withdraw consent not found.

Evidence

- {'name': 'Controller Identity', 'data': 'Yelp Inc. (Delaware corporation) or Yelp Ireland Ltd. (limited liability company established and resident under the laws of the Republic of Ireland), depending on residency. Headquarters in San Francisco, California.'}
- {'name': 'Purposes of Processing', 'data': 'To provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations.'}
- {'name': 'Data Collected Upon Account Creation', 'data': 'First and last name, email address, zip code, physical address, gender, phone number, or birth date.'}
- {'name': 'Publicly Displayed Information', 'data': 'First name and last initial, photos, ratings, reviews, tips, lists, Collections, compliments, Ask the Community posts, Yelp Talk posts, edits to business page information, account profile (first name, last initial, city, neighborhood, month and year account created, profile photos, list of friends), voting on contributions, liked contributions/users, check-ins, followed contributions/users, followed/bookmarked businesses.'}
- {'name': 'Contact Information for Invitations', 'data': 'Provided by the user or accessed from device contacts.'}
- {'name': 'Messaging Preferences', 'data': 'Can be managed through account settings, but cannot opt out of certain administrative, transactional, or legal messages.'}

Notes

The policy provides substantial information regarding the identity of the controller and the purposes for data processing. However, it is significantly lacking in detailing other crucial aspects required by Article 13, such as the DPO's contact, retention periods, specific recipient categories, data transfer safeguards, and details on automated decision-making. The absence of these elements results in a high risk assessment due to potential non-compliance with fair and transparent processing principles.

```

{
  "article_number": 13,
  "article_title": "Info collected from data subject",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [

```

```

"Controller's representative details not found.",
"DPO contact details not found.",
"Legal basis for processing not explicitly stated.",
"Retention period or criteria for determining it not specified.",
"Specific categories of recipients not detailed.",
"Information on data transfer to third countries or international organizations missing.",
"Details on the right to data portability not found.",
"Information about the existence of the right to withdraw consent not found.",
"Information on whether data provision is a statutory or contractual requirement and
possible consequences of failure to provide data not found.",
"Details on automated decision-making, including profiling, logic, significance, and
consequences not found."
],
"evidence": [
{
"name": "Controller Identity",
"data": "Yelp Inc. (Delaware corporation) or Yelp Ireland Ltd. (limited liability company
established and resident under the laws of the Republic of Ireland), depending on residency.
Headquarters in San Francisco, California."
},
{
"name": "Purposes of Processing",
"data": "To provide the Service's functionality, fulfill your requests, improve the
Service's quality, engage in research and analysis relating to the Service, personalize your
experience, track usage of the Service, provide feedback to third party businesses that are
listed on the Service, display relevant advertising, market the Service, provide customer
support, message you, back up our systems, allow for disaster recovery, enhance the security of
the Service, and comply with legal obligations."
},
{
"name": "Data Collected Upon Account Creation",
"data": "First and last name, email address, zip code, physical address, gender, phone
number, or birth date."
},
{
"name": "Publicly Displayed Information",
"data": "First name and last initial, photos, ratings, reviews, tips, lists, Collections,
compliments, Ask the Community posts, Yelp Talk posts, edits to business page information,
account profile (first name, last initial, city, neighborhood, month and year account created,
profile photos, list of friends), voting on contributions, liked contributions/users, check-ins,
followed contributions/users, followed/bookmarked businesses."
},
{
"name": "Contact Information for Invitations",
"data": "Provided by the user or accessed from device contacts."
},
{
"name": "Messaging Preferences",
"data": "Can be managed through account settings, but cannot opt out of certain
administrative, transactional, or legal messages."
}
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy provides substantial information regarding the identity of the
controller and the purposes for data processing. However, it is significantly lacking in
detailing other crucial aspects required by Article 13, such as the DPO's contact, retention
periods, specific recipient categories, data transfer safeguards, and details on automated
decision-making. The absence of these elements results in a high risk assessment due to
potential non-compliance with fair and transparent processing principles.",
"article_material_used": "text"
}

```

Art. 14 — Info not obtained from data subject

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy does not explicitly state the identity and contact details of the controller, or their representative.
- The policy does not explicitly state the contact details of the Data Protection Officer (DPO), if applicable.
- The policy does not explicitly state the purposes of the processing for which the personal data are intended.
- The policy does not explicitly state the legal basis for the processing.
- The policy does not explicitly state the categories of personal data concerned.

- The policy does not explicitly state the recipients or categories of recipients of the personal data.
- The policy does not explicitly state whether personal data will be transferred to a recipient in a third country or international organisation, and if so, the existence of an adequacy decision or appropriate safeguards.
- The policy does not explicitly state the period for which the personal data will be stored, or the criteria used to determine that period.

Notes

The provided policy text does not contain any information relevant to Article 14 of the GDPR. Therefore, it is impossible to determine compliance with any of the requirements listed in this article. The policy needs to be updated to include all the necessary information as per Article 14(1) and 14(2), and also address the timing requirements in Article 14(3) and 14(4), and any relevant exceptions in 14(5).

```
{
  "article_number": 14,
  "article_title": "Info not obtained from data subject",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state the identity and contact details of the controller, or their representative.",
    "The policy does not explicitly state the contact details of the Data Protection Officer (DPO), if applicable.",
    "The policy does not explicitly state the purposes of the processing for which the personal data are intended.",
    "The policy does not explicitly state the legal basis for the processing.",
    "The policy does not explicitly state the categories of personal data concerned.",
    "The policy does not explicitly state the recipients or categories of recipients of the personal data.",
    "The policy does not explicitly state whether personal data will be transferred to a recipient in a third country or international organisation, and if so, the existence of an adequacy decision or appropriate safeguards.",
    "The policy does not explicitly state the period for which the personal data will be stored, or the criteria used to determine that period.",
    "The policy does not explicitly state, where processing is based on legitimate interests, those interests.",
    "The policy does not explicitly state the data subject's rights, including access, rectification, erasure, restriction of processing, and objection to processing, as well as the right to data portability.",
    "The policy does not explicitly state the right to withdraw consent at any time, if processing is based on consent.",
    "The policy does not explicitly state the right to lodge a complaint with a supervisory authority.",
    "The policy does not explicitly state the source of the personal data and whether it came from publicly accessible sources.",
    "The policy does not explicitly state the existence of automated decision-making, including profiling, and meaningful information about the logic involved and envisaged consequences.",
    "The policy does not specify the timeframe within which the information will be provided (within a reasonable period, at the latest within one month, or at the time of first communication/disclosure).",
  ],
  "evidence": [],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The provided policy text does not contain any information relevant to Article 14 of the GDPR. Therefore, it is impossible to determine compliance with any of the requirements listed in this article. The policy needs to be updated to include all the necessary information as per Article 14(1) and 14(2), and also address the timing requirements in Article 14(3) and 14(4), and any relevant exceptions in 14(5).",
  "article_material_used": "text"
}
```

Art. 15 — Right of access

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy does not explicitly describe the process for submitting a Subject Access Request (SAR).
- The policy does not specify the timeline for responding to SARs.
- The policy does not mention any procedures for verifying the identity of the data subject making the SAR.

- The policy does not detail what information will be provided to the data subject in response to an SAR, other than general mentions of information use and disclosure.

Evidence

- {policy_chunk: '[c0 0-194] 059 — Post gdpr Source: <https://terms.yelp.com/privacy/enus/20200101enus/> Length: 25,974 chars Yelp Privacy Policy Last Updated on December 13, 2019. This Privacy Policy is effective January 1,' , 'Article': '15'}
- {policy_chunk: '[c1 194-1394] 2020 for all users. To review the previous policy, please click here . This Privacy Policy describes our policies on the collection, use, and disclosure of information about you in connection with your use of our services, including those offered through our websites, communications (e.g., emails, phone calls, and texts), and mobile applications (collectively, the “ Service ”). The terms “ we ”, “ us ”, and “ Yelp ” refer to: (i) Yelp Inc., a Delaware corporation with its headquarters in San Francisco, California, unless you are a European Resident; or (ii) Yelp Ireland Ltd., a limited liability company established and resident under the laws of the Republic of Ireland, if you are a European Resident. “ European Resident ” means a resident of a country in the European Economic Area (“ EEA ”) or Switzerland. When you use the Service, you consent to our collection, use, and disclosure of information about you as described in this Privacy Policy. We may translate this Privacy Policy into other languages for your convenience. Nevertheless, the English version governs your relationship with Yelp, and any inconsistencies among the different versions will be resolved in favor of the Engli', 'Article': '15'}
- {policy_chunk: '[c2 1194-2394] other languages for your convenience. Nevertheless, the English version governs your relationship with Yelp, and any inconsistencies among the different versions will be resolved in favor of the English version available here . TABLE OF CONTENTS We may collect, transmit, and store information about you in connection with your use of the Service, including any information you send to or through the Service. We use that information to provide the Service’s functionality, fulfill your requests, improve the Service’s quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations. Even when we do not retain such information, it still must be transmitted to our servers initially and stored long enough to process. Please also note: When you create a Yelp account, we store and use the information you provide during that process, such as the first and', 'Article': '15'}
- {policy_chunk: '[c3 2194-3394] d to our servers initially and stored long enough to process. Please also note: When you create a Yelp account, we store and use the information you provide during that process, such as the first and last name you enter, email address, zip code, physical address, and any other information you may provide during the account creation process, such as a gender, phone number, or birth date. We may publicly display the first name and last initial that you provide, as well as any photo or other content you submit through the account creation process, as part of your account profile. We also store and use any preferences you provide to personalize your user experience, including dining and activity preferences. You can later modify some of the account information you provide through your account settings . If you believe that someone has created an unauthorized account using your personal information, you can request its removal by flagging it. Your contributions to the Service are intended for public consumption and are therefore viewable by the public, including your photos, ratings, reviews, tips, lists, Collections, compliments, Ask the Community posts, Yelp Talk posts, and edits to b', 'Article': '15'}
- {policy_chunk: '[c4 3194-4394] or public consumption and are therefore viewable by the public, including your photos, ratings, reviews, tips, lists, Collections, compliments, Ask the Community posts, Yelp Talk posts, and edits to business page information. Your account profile (e.g., first name, last initial, city, neighborhood, the month and year you created your Yelp account, profile photos and list of friends on Yelp) is also intended for public consumption, as is some of your other activity through the Service, like how you vote on other people’s contributions (e.g., useful, funny, cool, helpful, or not helpful), which contributions you like, where you check-in (including when friends on Yelp tag you in their own check-ins), which contributions or users you follow, and which businesses you follow or bookmark. You can limit the public nature of some of these activities through your account settings . You can invite others to join or become your friend on Yelp by providing us with their contact information, or by allowing us to access contacts from your computer, mobile device, or third party sites to select which individuals you want to invite. If you allow us to access your contacts, we will transmit informa',

'Article': '15'}

• {policy_chunk: '[c5 4194-5394] allowing us to access contacts from your computer, mobile device, or third party sites to select which individuals you want to invite. If you allow us to access your contacts, we will transmit information about your contacts to our servers long enough to process your invitations. When you sign up for an account or use certain features, you are opting to receive messages from other users, businesses, and Yelp. You can manage some of your messaging preferences through your account settings , but note that you cannot opt out of receiving certain administrative, transactional, or legal messages from Yelp. For example, if you make a reservation, order food, place yourself on a waitlist, or request a quote from a business through the Service, we may send you messages about your transaction using the contact information you provide, including through automated SMS text messages to your phone number. We may also', 'Article': '15'}

Notes

The policy does not contain specific information regarding the Subject Access Request (SAR) process, response timelines, identity verification, or the exact nature of the information provided upon request, which are key requirements of GDPR Article 15.

```
{
  "article_number": 15,
  "article_title": "Right of access",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly describe the process for submitting a Subject Access Request (SAR).",
    "The policy does not specify the timeline for responding to SARs.",
    "The policy does not mention any procedures for verifying the identity of the data subject making the SAR.",
    "The policy does not detail what information will be provided to the data subject in response to an SAR, other than general mentions of information use and disclosure."
  ],
  "evidence": [
    {
      "policy_chunk": "[c0 0-194] 059 – Post gdpr Source: https://terms.yelp.com/privacy/enus/20200101enus/ Length: 25,974 chars Yelp Privacy Policy Last Updated on December 13, 2019. This Privacy Policy is effective January 1,",
      "Article": "15"
    },
    {
      "policy_chunk": "[c1 194-1394] 2020 for all users. To review the previous policy, please click here . This Privacy Policy describes our policies on the collection, use, and disclosure of information about you in connection with your use of our services, including those offered through our websites, communications (e.g., emails, phone calls, and texts), and mobile applications (collectively, the " Service "). The terms " we ", " us ", and " Yelp " refer to: ( i) Yelp Inc., a Delaware corporation with its headquarters in San Francisco, California, unless you are a European Resident; or (ii) Yelp Ireland Ltd., a limited liability company established and resident under the laws of the Republic of Ireland, if you are a European Resident. " European Resident " means a resident of a country in the European Economic Area ( " EEA ") or Switzerland. When you use the Service, you consent to our collection, use, and disclosure of information about you as described in this Privacy Policy. We may translate this Privacy Policy into other languages for your convenience. Nevertheless, the English version governs your relationship with Yelp, and any inconsistencies among the different versions will be resolved in favor of the Engli",
      "Article": "15"
    },
    {
      "policy_chunk": "[c2 1194-2394] other languages for your convenience. Nevertheless, the English version governs your relationship with Yelp, and any inconsistencies among the different versions will be resolved in favor of the English version available here . TABLE OF CONTENTS We may collect, transmit, and store information about you in connection with your use of the Service, including any information you send to or through the Service. We use that information to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations. Even when we do not retain such information, it still must be transmitted to our servers initially and stored long enough to process. Please also note: When you create a Yelp account, we store and use the information you provide during that process, such as the first and",
      "Article": "15"
    },
    {
      "policy_chunk": "[c3 2194-3394] d to our servers initially and stored long enough to process. Please also note: When you create a Yelp account, we store and use the information you provide during that process, such as the first and last name you enter, email address, zip code, physical address, and any other information you may provide during the account creation
```

process, such as a gender, phone number, or birth date. We may publicly display the first name and last initial that you provide, as well as any photo or other content you submit through the account creation process, as part of your account profile. We also store and use any preferences you provide to personalize your user experience, including dining and activity preferences. You can later modify some of the account information you provide through your account settings . If you believe that someone has created an unauthorized account using your personal information, you can request its removal by flagging it. Your contributions to the Service are int
... (truncated)

Art. 16 — Right to rectification

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not describe the right to rectification or the process for a data subject to request rectification of their personal data.
- The policy does not mention the requirement to rectify inaccurate personal data 'without undue delay'.

Evidence

- {'policy_chunk_tag': 'c14 13194-14394'}
- {'policy_chunk_tag': 'c15 14194-15394'}
- {'policy_chunk_tag': 'c16 15194-16394'}
- {'policy_chunk_tag': 'c17 16194-17394'}
- {'policy_chunk_tag': 'c18 17194-18394'}

Notes

The provided policy chunks do not contain any information related to the data subject's right to rectification as outlined in GDPR Article 16. There is no mention of how a data subject can request rectification, nor is there any commitment to rectify inaccurate data without undue delay.

```
{
  "article_number": 16,
  "article_title": "Right to rectification",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not describe the right to rectification or the process for a data subject to request rectification of their personal data.",
    "The policy does not mention the requirement to rectify inaccurate personal data 'without undue delay'."
  ],
  "evidence": [
    {
      "policy_chunk_tag": "c14 13194-14394"
    },
    {
      "policy_chunk_tag": "c15 14194-15394"
    },
    {
      "policy_chunk_tag": "c16 15194-16394"
    },
    {
      "policy_chunk_tag": "c17 16194-17394"
    },
    {
      "policy_chunk_tag": "c18 17194-18394"
    }
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided policy chunks do not contain any information related to the data subject's right to rectification as outlined in GDPR Article 16. There is no mention of how a data subject can request rectification, nor is there any commitment to rectify inaccurate data without undue delay.",
  "article_material_used": "text"
}
```

Art. 17 — Right to erasure

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not clearly describe the process for a data subject to request erasure of their personal data.
- The policy does not specify the grounds upon which an erasure request might be refused.
- The policy does not detail any exceptions to the right to erasure, such as for legal obligations or legitimate interests, as outlined in Article 17(3).

Evidence

- The provided policy chunks focus on data sharing with third parties, legal disclosures, and how businesses interact with user data, but do not address the data subject's right to erasure or the controller's obligations and exceptions related to it.

Notes

The policy lacks crucial information regarding the 'right to erasure' as mandated by Article 17 of the GDPR. It does not outline the procedure for data subjects to exercise this right, nor does it cover the controller's responsibilities, grounds for refusal, or any exceptions, all of which are fundamental to compliance with Article 17.

```
{
  "article_number": 17,
  "article_title": "Right to erasure",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not clearly describe the process for a data subject to request erasure of their personal data.",
    "The policy does not specify the grounds upon which an erasure request might be refused.",
    "The policy does not detail any exceptions to the right to erasure, such as for legal obligations or legitimate interests, as outlined in Article 17(3).",
  ],
  "evidence": [
    "The provided policy chunks focus on data sharing with third parties, legal disclosures, and how businesses interact with user data, but do not address the data subject's right to erasure or the controller's obligations and exceptions related to it."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy lacks crucial information regarding the 'right to erasure' as mandated by Article 17 of the GDPR. It does not outline the procedure for data subjects to exercise this right, nor does it cover the controller's responsibilities, grounds for refusal, or any exceptions, all of which are fundamental to compliance with Article 17.",
  "article_material_used": "text"
}
```

Art. 18 — Right to restriction

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The policy does not explicitly detail the conditions under which a data subject can request the restriction of processing, nor does it outline the process for verifying the accuracy of data or handling requests related to unlawful processing where erasure is opposed. It also fails to mention the right to be informed before the restriction is lifted.

Evidence

- c23: 'If you are a European Resident, you have the right to access your personal data, and the right to request that we correct, update, or delete your personal data. You can object to the processing of your personal information, ask us to restrict processing of your personal information, and request portability of your personal information. Additional information regarding your exercise of these rights is available through the Support Center.'

Notes

While chunk c23 acknowledges the right to restrict processing for European residents, it lacks the specific details outlined in Article 18, such as the grounds for restriction (accuracy, unlawful processing, legal claims, objections) and the notification requirement before lifting a restriction. The provided policy does not specify how these grounds are handled or what 'restriction of processing' entails in practice beyond a general statement.

```
{
  "article_number": 18,
  "article_title": "Right to restriction",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly detail the conditions under which a data subject can request the restriction of processing, nor does it outline the process for verifying the accuracy of data or handling requests related to unlawful processing where erasure is opposed. It also fails to mention the right to be informed before the restriction is lifted."
  ],
  "evidence": [
    "c23: 'If you are a European Resident, you have the right to access your personal data, and the right to request that we correct, update, or delete your personal data. You can object to the processing of your personal information, ask us to restrict processing of your personal information, and request portability of your personal information. Additional information regarding your exercise of these rights is available through the Support Center.'"
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "While chunk c23 acknowledges the right to restrict processing for European residents, it lacks the specific details outlined in Article 18, such as the grounds for restriction (accuracy, unlawful processing, legal claims, objections) and the notification requirement before lifting a restriction. The provided policy does not specify how these grounds are handled or what 'restriction of processing' entails in practice beyond a general statement.",
  "article_material_used": "text"
}
```

Art. 19 — Notification on rectification/erasure

Priority: p3 Chapter: Ch.3 – Rights of data subjects
 Severity: critical Status: missing
 Score: 0/100
 Notes

The provided policy text does not contain information regarding downstream notification to recipients upon rectification or erasure of personal data. The policy focuses on the collection, use, and disclosure of user information and account management.

```
{
  "article_number": 19,
  "article_title": "Notification on rectification/erasure",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided policy text does not contain information regarding downstream notification to recipients upon rectification or erasure of personal data. The policy focuses on the collection, use, and disclosure of user information and account management.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 20 — Right to data portability

Priority: p2 Chapter: Ch.3 – Rights of data subjects
 Severity: critical Status: fail
 Score: 0/100
 Risk: high
 Gaps

- The policy does not mention the right to receive personal data in a structured, commonly used, and machine-readable format.
- The policy does not mention the right to transmit personal data to another controller without hindrance.

- The policy does not mention the right to have personal data transmitted directly from one controller to another, where technically feasible.

Evidence

- {'policy_chunk_id': 'c0 0-194', 'description': 'Yelp Privacy Policy Last Updated on December 13, 2019. This Privacy Policy is effective January 1, 2020 for all users.'}
- {'policy_chunk_id': 'c1 194-1394', 'description': 'This Privacy Policy describes our policies on the collection, use, and disclosure of information about you in connection with your use of our services, including those offered through our websites, communications (e.g., emails, phone calls, and texts), and mobile applications (collectively, the " Service ").'}
- {'policy_chunk_id': 'c2 1194-2394', 'description': 'We may collect, transmit, and store information about you in connection with your use of the Service, including any information you send to or through the Service. We use that information to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations. Even when we do not retain such information, it still must be transmitted to our servers initially and stored long enough to process.'}
- {'policy_chunk_id': 'c3 2194-3394', 'description': 'Please also note: When you create a Yelp account, we store and use the information you provide during that process, such as the first and last name you enter, email address, zip code, physical address, and any other information you may provide during the account creation process, such as a gender, phone number, or birth date.'}
- {'policy_chunk_id': 'c4 3194-4394', 'description': 'Your account profile (e.g., first name, last initial, city, neighborhood, the month and year you created your Yelp account, profile photos and list of friends on Yelp) is also intended for public consumption, as is some of your other activity through the Service, like how you vote on other people's contributions (e.g., useful, funny, cool, helpful, or not helpful), which contributions you like, where you check-in (including when friends on Yelp tag you in their own check-ins), which contributions or users you follow, and which businesses you follow or bookmark.'}
- {'policy_chunk_id': 'c5 4194-5394', 'description': 'If you allow us to access your contacts, we will transmit information about your contacts to our servers long enough to process your invitations. When you sign up for an account or use certain features, you are opting to receive messages from other users, businesses, and Yelp. You can manage some of your messaging preferences through your account settings , but note that you cannot opt out of receiving certain administrative, transactional, or legal messages from Yelp.'}

Notes

The policy does not address the specific requirements of Article 20 regarding data portability, such as the format of data and the right to transmit data to another controller. While the policy mentions data collection, storage, and transmission, it lacks explicit provisions for the data subject's right to data portability.

```
{
  "article_number": 20,
  "article_title": "Right to data portability",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not mention the right to receive personal data in a structured, commonly used, and machine-readable format.",
    "The policy does not mention the right to transmit personal data to another controller without hindrance.",
    "The policy does not mention the right to have personal data transmitted directly from one controller to another, where technically feasible."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c0 0-194",
      "description": "Yelp Privacy Policy Last Updated on December 13, 2019. This Privacy Policy is effective January 1, 2020 for all users."
    },
    {
      "policy_chunk_id": "c1 194-1394",
      "description": "This Privacy Policy describes our policies on the collection, use, and disclosure of information about you in connection with your use of our services, including those offered through our websites, communications (e.g., emails, phone calls, and texts), and mobile applications (collectively, the " Service ")."
    }
  ],
}
```

```

{
  "policy_chunk_id": "c2 1194-2394",
  "description": "We may collect, transmit, and store information about you in connection with your use of the Service, including any information you send to or through the Service. We use that information to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations. Even when we do not retain such information, it still must be transmitted to our servers initially and stored long enough to process."
},
{
  "policy_chunk_id": "c3 2194-3394",
  "description": "Please also note: When you create a Yelp account, we store and use the information you provide during that process, such as the first and last name you enter, email address, zip code, physical address, and any other information you may provide during the account creation process, such as a gender, phone number, or birth date."
},
{
  "policy_chunk_id": "c4 3194-4394",
  "description": "Your account profile (e.g., first name, last initial, city, neighborhood, the month and year you created your Yelp account, profile photos and list of friends on Yelp) is also intended for public consumption, as is some of your other activity through the Service, like how you vote on other people's contributions (e.g., useful, funny, cool, helpful, or not helpful), which contributions you like, where you check-in (including when friends on Yelp tag you in their own check-ins), which contributions or users you follow, and which businesses you follow or bookmark."
},
{
  "policy_chunk_id": "c5 4194-5394",
  "description": "If you allow us to access your contacts, we will transmit information about your contacts to our servers long enough to process your invitations. When you sign up for an account or use certain features, you are opting to receive messages from other users, businesses, and Yelp. You can manage some of your messaging preferences through your account settings, but note that you cannot opt out of receiving certain administrative, transactional, or legal messages from Yelp."
}
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy does not address the specific requirements of Article 20 regarding data portability, such as the format of data and the right to transmit data to another controller. While the policy mentions data collection, storage, and transmission, it lacks explicit provisions for the data subject's right to data portability.",
"article_material_used": "text"
}

```

Art. 21 — Right to object

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state how individuals can object to direct marketing or profiling. Article 21(4) requires this right to be presented clearly and separately, and Article 21(5) mentions automated means for exercising the right, neither of which is addressed in the provided policy chunks.
- There is no information on whether the right to object is explicitly brought to the data subject's attention at the time of the first communication or presented separately from other information.
- The policy does not detail the process for data subjects to object to processing based on particular situations (Article 21(1) and 21(6)).
- The policy does not confirm that, upon objection to direct marketing, processing will cease for those purposes as required by Article 21(3).

Evidence

- Policy Chunk [c7 6194-7394] mentions logging phone numbers, carriers, and message times for SMS texts, and storing communications, but not the opt-out mechanism.
- Policy Chunk [c8 7194-8394] discusses sharing transaction-related information with third parties for processing and communication, but lacks information on opt-out.

- Policy Chunk [c9 8194-9394] details the collection of various data including location and device information, and mentions user control over location data through device settings, but not a general right to object to processing.
- Policy Chunk [c10 9194-10394] discusses cross-referencing data across platforms but does not cover objection rights.
- Policy Chunk [c11 10194-11394] states that legal basis for collection depends on context, often consent or legitimate interests, but does not elaborate on the data subject's right to object or how it is exercised.

Notes

The policy lacks explicit information regarding the data subject's right to object to processing, including direct marketing and profiling, as mandated by GDPR Article 21. Specifically, there is no clear mechanism for initiating an objection, nor confirmation that the right is clearly and separately communicated to users. The available policy chunks focus on data collection and usage rather than the data subject's rights to opt-out or object.

```
{
  "article_number": 21,
  "article_title": "Right to object",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state how individuals can object to direct marketing or profiling. Article 21(4) requires this right to be presented clearly and separately, and Article 21(5) mentions automated means for exercising the right, neither of which is addressed in the provided policy chunks.",
    "There is no information on whether the right to object is explicitly brought to the data subject's attention at the time of the first communication or presented separately from other information.",
    "The policy does not detail the process for data subjects to object to processing based on particular situations (Article 21(1) and 21(6)).",
    "The policy does not confirm that, upon objection to direct marketing, processing will cease for those purposes as required by Article 21(3).",
  ],
  "evidence": [
    "Policy Chunk [c7 6194-7394] mentions logging phone numbers, carriers, and message times for SMS texts, and storing communications, but not the opt-out mechanism.",
    "Policy Chunk [c8 7194-8394] discusses sharing transaction-related information with third parties for processing and communication, but lacks information on opt-out.",
    "Policy Chunk [c9 8194-9394] details the collection of various data including location and device information, and mentions user control over location data through device settings, but not a general right to object to processing.",
    "Policy Chunk [c10 9194-10394] discusses cross-referencing data across platforms but does not cover objection rights.",
    "Policy Chunk [c11 10194-11394] states that legal basis for collection depends on context, often consent or legitimate interests, but does not elaborate on the data subject's right to object or how it is exercised."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy lacks explicit information regarding the data subject's right to object to processing, including direct marketing and profiling, as mandated by GDPR Article 21. Specifically, there is no clear mechanism for initiating an objection, nor confirmation that the right is clearly and separately communicated to users. The available policy chunks focus on data collection and usage rather than the data subject's rights to opt-out or object.",
  "article_material_used": "text"
}
```

Art. 22 — Automated decision-making

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- Article 22(1) requires that data subjects have the right not to be subject to automated decision-making, including profiling, which produces legal effects or similarly significantly affects them. The policy chunks do not explicitly state whether such decisions are made, nor do they mention any rights for data subjects to opt-out or avoid such processing.
- Article 22(3) requires that in cases where automated decisions are made (e.g., for contract performance or consent), suitable measures must be in place to safeguard data subject rights, including the right to human

intervention, to express a point of view, and to contest the decision. The provided policy chunks do not mention any such measures or rights.

- Article 22(4) addresses the use of special categories of personal data in automated decision-making. The policy chunks do not provide information on whether special categories of data are used in automated decisions or if suitable safeguards are in place.

Evidence

- The provided policy chunks discuss the sharing of data with third-party providers for advertising programs and measurement, and the potential use of advertising identifiers and hashes of email addresses. While this involves processing, it is not explicitly described as automated decision-making that produces legal or similarly significant effects on the data subject.

- The policy mentions sharing user information with businesses on Yelp, including city, age, gender, device type, and usage of the service. This sharing is described in the context of facilitating interactions with businesses and advertising, but not as automated decision-making affecting the user.

- The policy describes the potential disclosure of information for legal compliance, fraud investigation, and protection of rights. These are not automated decisions made about the data subject but rather disclosures made by the company.

Notes

The policy chunks do not sufficiently address Article 22 regarding automated decision-making. While data is shared and processed for various purposes including advertising and business interactions, there is no clear indication of automated decision-making that produces legal or similarly significant effects on data subjects. Crucially, there is no mention of the rights afforded to data subjects under Article 22, such as the right to human intervention, to express a point of view, or to contest automated decisions. This lack of transparency and specific provisions poses a high risk.

```
{
  "article_number": 22,
  "article_title": "Automated decision-making",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "Article 22(1) requires that data subjects have the right not to be subject to automated decision-making, including profiling, which produces legal effects or similarly significantly affects them. The policy chunks do not explicitly state whether such decisions are made, nor do they mention any rights for data subjects to opt-out or avoid such processing.",
    "Article 22(3) requires that in cases where automated decisions are made (e.g., for contract performance or consent), suitable measures must be in place to safeguard data subject rights, including the right to human intervention, to express a point of view, and to contest the decision. The provided policy chunks do not mention any such measures or rights.",
    "Article 22(4) addresses the use of special categories of personal data in automated decision-making. The policy chunks do not provide information on whether special categories of data are used in automated decisions or if suitable safeguards are in place."
  ],
  "evidence": [
    "The provided policy chunks discuss the sharing of data with third-party providers for advertising programs and measurement, and the potential use of advertising identifiers and hashes of email addresses. While this involves processing, it is not explicitly described as automated decision-making that produces legal or similarly significant effects on the data subject.",
    "The policy mentions sharing user information with businesses on Yelp, including city, age, gender, device type, and usage of the service. This sharing is described in the context of facilitating interactions with businesses and advertising, but not as automated decision-making affecting the user.",
    "The policy describes the potential disclosure of information for legal compliance, fraud investigation, and protection of rights. These are not automated decisions made about the data subject but rather disclosures made by the company."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy chunks do not sufficiently address Article 22 regarding automated decision-making. While data is shared and processed for various purposes including advertising and business interactions, there is no clear indication of automated decision-making that produces legal or similarly significant effects on data subjects. Crucially, there is no mention of the rights afforded to data subjects under Article 22, such as the right to human intervention, to express a point of view, or to contest automated decisions. This lack of transparency and specific provisions poses a high risk.",
  "article_material_used": "text"
}
```

Art. 24 — Responsibility of the controller

Priority: p2 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** partial

Score: 36/100

Risk: low

Gaps

- The policy does not explicitly state that the controller implements appropriate technical and organisational measures to ensure and demonstrate compliance with GDPR. While it mentions using data to improve services, enhance security, and comply with legal obligations, it lacks a direct statement of commitment to Article 24(1) requirements.
- There is no explicit mention of reviewing and updating these measures as necessary, as required by Article 24(1).
- The policy does not explicitly mention the implementation of appropriate data protection policies as per Article 24(2), nor does it reference adherence to approved codes of conduct or certification mechanisms as per Article 24(3).

Evidence

- The policy states that information is used 'to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations.' This indirectly relates to measures for processing, but not explicitly for demonstrating compliance.
- The policy mentions "We may translate this Privacy Policy into other languages for your convenience." and provides an English version link, suggesting a structured approach to policy management.

Notes

The policy outlines various ways data is processed and mentions enhancing security and complying with legal obligations. However, it lacks explicit statements demonstrating the controller's responsibility for implementing and maintaining technical and organisational measures to ensure and prove GDPR compliance, as mandated by Article 24(1) and further specified in Article 24(2) and 24(3).

```
{
  "article_number": 24,
  "article_title": "Responsibility of the controller",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state that the controller implements appropriate technical and organisational measures to ensure and demonstrate compliance with GDPR. While it mentions using data to improve services, enhance security, and comply with legal obligations, it lacks a direct statement of commitment to Article 24(1) requirements.",
    "There is no explicit mention of reviewing and updating these measures as necessary, as required by Article 24(1).",
    "The policy does not explicitly mention the implementation of appropriate data protection policies as per Article 24(2), nor does it reference adherence to approved codes of conduct or certification mechanisms as per Article 24(3).",
  ],
  "evidence": [
    "The policy states that information is used 'to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations.' This indirectly relates to measures for processing, but not explicitly for demonstrating compliance.",
    "The policy mentions \"We may translate this Privacy Policy into other languages for your convenience.\" and provides an English version link, suggesting a structured approach to policy management."
  ],
  "risk": "low",
  "needs_human_review": false,
  "notes": "The policy outlines various ways data is processed and mentions enhancing security and complying with legal obligations. However, it lacks explicit statements demonstrating the controller's responsibility for implementing and maintaining technical and organisational measures to ensure and prove GDPR compliance, as mandated by Article 24(1) and further specified in Article 24(2) and 24(3).",
}
```

```
"article_material_used": "text"
}
```

Art. 25 — Privacy by design and default

Priority: p3 Chapter: Ch.4 – Controller & processor
Severity: critical Status: missing
Score: 0/100
Notes

The policy mentions enhancing security and complying with legal obligations, but does not specifically address privacy by design or default principles. The provided chunks focus on data collection, usage, and user-configurable settings rather than embedding privacy into the design and default configurations of the service.

```
{
  "article_number": 25,
  "article_title": "Privacy by design and default",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy mentions enhancing security and complying with legal obligations, but
does not specifically address privacy by design or default principles. The provided chunks
focus on data collection, usage, and user-configurable settings rather than embedding privacy
into the design and default configurations of the service.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 26 — Joint controllers

Priority: p3 Chapter: Ch.4 – Controller & processor
Severity: warning Status: present (unverified)
Score: 70/100

```
{
  "article_number": 26,
  "article_title": "Joint controllers",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": true,
  "implementation_unverified": true,
  "needs_human_review": true,
  "evidence": "The policy excerpt defines 'controller' as 'the natural or legal person, public
authority, agency or other body which, alone or jointly with others, determines the purposes
and means of the processing of personal data'. This directly addresses the concept of joint
controllership as covered in GDPR Article 26.",
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 27 — Representatives (non-EU)

Priority: p3 Chapter: Ch.4 – Controller & processor
Severity: critical Status: missing
Score: 0/100
Notes

The provided text only contains definitions from Article 4 of the GDPR and does not mention Article 27 or the requirement for non-EU companies to appoint a representative.

```
{
  "article_number": 27,
  "article_title": "Representatives (non-EU)",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
}
```

```

"needs_human_review": true,
"evidence": [],
"notes": "The provided text only contains definitions from Article 4 of the GDPR and does not mention Article 27 or the requirement for non-EU companies to appoint a representative.",
"status": null,
"gaps": [],
"risk": null
}

```

Art. 28 — Processor / DPA

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: warning Status: partial

Score: 28/100

Risk: high

Gaps

- The provided policy chunks do not explicitly state whether a sub-processor list is maintained or if audit rights are granted to the controller. Additionally, there is no mention of specific clauses regarding the deletion or return of personal data after service termination, nor explicit confirmation of processors acting only on documented instructions.
- Article 28(2) requires controllers to be informed of intended changes to sub-processors and have an opportunity to object. This is not addressed in the provided chunks.
- Article 28(3)(a) mandates that processors only act on documented instructions. The provided text does not confirm this adherence.
- Article 28(3)(h) requires processors to make information available to demonstrate compliance and to allow for audits. This is not covered in the provided chunks.

Evidence

- {'policy_chunk_id': 'c7 6194-7394', 'retrieval_source': 'The policy chunk states that 'Our communications with you, including phone calls, may be monitored and recorded for quality purposes.' This indicates a form of data processing and potential for instruction, but not explicitly for GDPR Article 28 requirements.'}
- {'policy_chunk_id': 'c8 7194-8394', 'retrieval_source': 'The chunk mentions 'When you submit credit card numbers and other sensitive payment information, that information is encrypted using industry standard technology.' This relates to Article 32 (Security of processing) rather than Article 28 processor obligations directly, although processors must implement such measures.'}
- {'policy_chunk_id': 'c10 9194-10394', 'retrieval_source': 'The chunk discusses data cross-referencing and visibility across platforms, and the potential collection and display of business-related information. It does not detail processor obligations.'}
- {'policy_chunk_id': 'c11 10194-11394', 'retrieval_source': 'This chunk discusses the legal basis for processing for European residents, mentioning consent, contract performance, and legitimate interests. It does not specifically address the contractual obligations of a processor under Article 28.'}

Notes

The provided policy chunks primarily focus on the data controller's responsibilities and general data handling practices rather than the specific contractual obligations required by Article 28 of the GDPR for data processors. Key elements such as sub-processor management, audit rights, and explicit adherence to documented instructions are missing. Therefore, compliance with Article 28 is not fully demonstrable based on the current information.

```

{
  "article_number": 28,
  "article_title": "Processor / DPA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The provided policy chunks do not explicitly state whether a sub-processor list is maintained or if audit rights are granted to the controller. Additionally, there is no mention of specific clauses regarding the deletion or return of personal data after service termination, nor explicit confirmation of processors acting only on documented instructions.",
    "Article 28(2) requires controllers to be informed of intended changes to sub-processors and have an opportunity to object. This is not addressed in the provided chunks.",
    "Article 28(3)(a) mandates that processors only act on documented instructions. The provided text does not confirm this adherence.",
    "Article 28(3)(h) requires processors to make information available to demonstrate

```


compliance and to allow for audits. This is not covered in the provided chunks."

```

    ],
    "evidence": [
      {
        "policy_chunk_id": "c7 6194-7394",
        "retrieval_source": "The policy chunk states that 'Our communications with you, including phone calls, may be monitored and recorded for quality purposes.' This indicates a form of data processing and potential for instruction, but not explicitly for GDPR Article 28 requirements."
      },
      {
        "policy_chunk_id": "c8 7194-8394",
        "retrieval_source": "The chunk mentions 'When you submit credit card numbers and other sensitive payment information, that information is encrypted using industry standard technology.' This relates to Article 32 (Security of processing) rather than Article 28 processor obligations directly, although processors must implement such measures."
      },
      {
        "policy_chunk_id": "c10 9194-10394",
        "retrieval_source": "The chunk discusses data cross-referencing and visibility across platforms, and the potential collection and display of business-related information. It does not detail processor obligations."
      },
      {
        "policy_chunk_id": "c11 10194-11394",
        "retrieval_source": "This chunk discusses the legal basis for processing for European residents, mentioning consent, contract performance, and legitimate interests. It does not specifically address the contractual obligations of a processor under Article 28."
      }
    ],
    "risk": "high",
    "needs_human_review": false,
    "notes": "The provided policy chunks primarily focus on the data controller's responsibilities and general data handling practices rather than the specific contractual obligations required by Article 28 of the GDPR for data processors. Key elements such as sub-processor management, audit rights, and explicit adherence to documented instructions are missing. Therefore, compliance with Article 28 is not fully demonstrable based on the current information.",
    "article_material_used": "text"
  }

```

Art. 29 — Processing under authority

Priority: p2 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state that persons acting under the authority of the controller or processor must only process personal data on instructions from the controller, unless required by Union or Member State law.

Evidence

- No policy chunks directly address the requirement for individuals processing data under the controller's or processor's authority to act solely on instructions, unless legally mandated.

Notes

Article 29 of the GDPR requires that any person acting under the authority of the controller or processor, who has access to personal data, shall not process those data except on instructions from the controller, unless required to do so by Union or Member State law. The provided policy chunks do not contain language that explicitly covers this requirement. This represents a significant gap in documenting adherence to this specific GDPR obligation.

```

{
  "article_number": 29,
  "article_title": "Processing under authority",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state that persons acting under the authority of the controller or processor must only process personal data on instructions from the controller, unless required by Union or Member State law."
  ],
  "evidence": [
    "No policy chunks directly address the requirement for individuals processing data under the controller's or processor's authority to act solely on instructions, unless legally mandated."
  ]
}

```

```

    ],
    "risk": "high",
    "needs_human_review": false,
    "notes": "Article 29 of the GDPR requires that any person acting under the authority of the controller or processor, who has access to personal data, shall not process those data except on instructions from the controller, unless required to do so by Union or Member State law. The provided policy chunks do not contain language that explicitly covers this requirement. This represents a significant gap in documenting adherence to this specific GDPR obligation.",
    "article_material_used": "text"
  }
}

```

Art. 30 — Records of processing (ROPA)

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The provided text does not contain a record of processing activities (ROPA) as required by Article 30.
- Specific details required for a ROPA, such as purposes of processing, categories of data subjects and data, recipients, retention periods, and security measures, are not explicitly listed in a ROPA format within the text.
- While the text describes the types of information collected and how it's used (which could form parts of a ROPA), it does not present this information as a formal ROPA document.

Evidence

- The policy document describes data collection and usage (e.g., 'We may collect, transmit, and store information about you in connection with your use of the Service...', 'We use that information to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations.') which are related to ROPA requirements but not a ROPA itself.

Notes

The policy outlines data processing activities but does not explicitly state the existence or content of a formal Record of Processing Activities (ROPA) as mandated by Article 30. Key elements required for a ROPA (purposes, categories of data subjects and data, recipients, retention, security measures) are not presented in a structured ROPA format.

```

{
  "article_number": 30,
  "article_title": "Records of processing (ROPA)",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The provided text does not contain a record of processing activities (ROPA) as required by Article 30.",
    "Specific details required for a ROPA, such as purposes of processing, categories of data subjects and data, recipients, retention periods, and security measures, are not explicitly listed in a ROPA format within the text.",
    "While the text describes the types of information collected and how it's used (which could form parts of a ROPA), it does not present this information as a formal ROPA document."
  ],
  "evidence": [
    "The policy document describes data collection and usage (e.g., 'We may collect, transmit, and store information about you in connection with your use of the Service...', 'We use that information to provide the Service's functionality, fulfill your requests, improve the Service's quality, engage in research and analysis relating to the Service, personalize your experience, track usage of the Service, provide feedback to third party businesses that are listed on the Service, display relevant advertising, market the Service, provide customer support, message you, back up our systems, allow for disaster recovery, enhance the security of the Service, and comply with legal obligations.') which are related to ROPA requirements but not a ROPA itself."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy outlines data processing activities but does not explicitly state the existence or content of a formal Record of Processing Activities (ROPA) as mandated by Article 30. Key elements required for a ROPA (purposes, categories of data subjects and data, recipients, retention, security measures) are not presented in a structured ROPA format.",
  "article_material_used": "text"
}

```

```
}
```

Art. 32 — Security of processing

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

```
{
  "article_number": 32,
  "article_title": "Security of processing",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 33 — Breach notification to SA

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text does not contain any mention of data breach notification procedures to a supervisory authority or the establishment of internal breach logs. It focuses on general data collection, use, and disclosure policies.

```
{
  "article_number": 33,
  "article_title": "Breach notification to SA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any mention of data breach notification
procedures to a supervisory authority or the establishment of internal breach logs. It focuses
on general data collection, use, and disclosure policies.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 34 — Breach communication to data subject

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text does not contain any information about breach notification procedures to data subjects. The chunks focus on data collection, usage, and user account management. There is no mention of handling personal data breaches or communicating them to individuals.

```
{
  "article_number": 34,
  "article_title": "Breach communication to data subject",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any information about breach notification
procedures to data subjects. The chunks focus on data collection, usage, and user account
management. There is no mention of handling personal data breaches or communicating them to
```

```

individuals.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 35 — DPIA

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

Notes

The provided text is a privacy policy that outlines data collection, usage, and disclosure practices. However, it does not contain any specific mention or discussion of Data Protection Impact Assessments (DPIAs) or related procedures, which is the core subject of GDPR Article 35.

```

{
  "article_number": 35,
  "article_title": "DPIA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text is a privacy policy that outlines data collection, usage, and disclosure practices. However, it does not contain any specific mention or discussion of Data Protection Impact Assessments (DPIAs) or related procedures, which is the core subject of GDPR Article 35.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 37 — DPO designation

Priority: p2 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state whether a Data Protection Officer (DPO) is required based on the criteria in Article 37(1). Specifically, it's unclear if Yelp's core activities involve "regular and systematic monitoring of data subjects on a large scale" or "processing on a large scale of special categories of data" or if Yelp is a "public authority or body".
- The policy mentions a "Data Privacy Manager" and provides contact details for them, but does not confirm if this role is equivalent to or fulfills the requirements of a Data Protection Officer as per Article 37.
- The policy does not explicitly state that the contact details of the DPO have been published as required by Article 37(7).

Evidence

- The policy mentions 'Yelp, Attn: Data Privacy Manager 140 New Montgomery St., 9th Floor San Francisco, California 94105' and 'Yelp Ireland Ltd. Attn: Data Privacy Manager 70 Sir John Rogerson's Quay Dublin 2, Ireland' as contact points for privacy-related inquiries.
- The policy discusses data privacy practices and rights for European residents, indicating that Yelp Ireland Ltd. is the data controller for European residents.

Notes

The policy refers to a 'Data Privacy Manager' and provides contact details, but it is not clear if this individual is designated as a Data Protection Officer (DPO) in accordance with Article 37 of the GDPR. The policy does not provide information to determine if Yelp's processing activities trigger the mandatory designation of a DPO. Furthermore, it is not explicitly stated that the contact details of a DPO have been published.

```

{
  "article_number": 37,
  "article_title": "DPO designation",
  "chapter": "Ch.4 – Controller & processor",

```

```

"priority": "p2",
"status": "fail",
"gaps": [
  "The policy does not explicitly state whether a Data Protection Officer (DPO) is required based on the criteria in Article 37(1). Specifically, it's unclear if Yelp's core activities involve \"regular and systematic monitoring of data subjects on a large scale\" or \"processing on a large scale of special categories of data\" or if Yelp is a \"public authority or body\".",
  "The policy mentions a \"Data Privacy Manager\" and provides contact details for them, but does not confirm if this role is equivalent to or fulfills the requirements of a Data Protection Officer as per Article 37.",
  "The policy does not explicitly state that the contact details of the DPO have been published as required by Article 37(7).",
],
"evidence": [
  "The policy mentions 'Yelp, Attn: Data Privacy Manager 140 New Montgomery St., 9th Floor San Francisco, California 94105' and 'Yelp Ireland Ltd. Attn: Data Privacy Manager 70 Sir John Rogerson's Quay Dublin 2, Ireland' as contact points for privacy-related inquiries.",
  "The policy discusses data privacy practices and rights for European residents, indicating that Yelp Ireland Ltd. is the data controller for European residents.",
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy refers to a 'Data Privacy Manager' and provides contact details, but it is not clear if this individual is designated as a Data Protection Officer (DPO) in accordance with Article 37 of the GDPR. The policy does not provide information to determine if Yelp's processing activities trigger the mandatory designation of a DPO. Furthermore, it is not explicitly stated that the contact details of a DPO have been published.",
"article_material_used": "text"
}

```

Art. 38 — DPO position

Priority: p3 Chapter: Ch.4 – Controller & processor
 Severity: critical Status: missing
 Score: 0/100
 Notes

The policy document does not mention or address the role, position, or independence of a Data Protection Officer (DPO) as required by GDPR Article 38. It focuses on general data privacy practices, consumer rights under CCPA and Nevada law, and data transfer mechanisms.

```

{
  "article_number": 38,
  "article_title": "DPO position",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy document does not mention or address the role, position, or independence of a Data Protection Officer (DPO) as required by GDPR Article 38. It focuses on general data privacy practices, consumer rights under CCPA and Nevada law, and data transfer mechanisms.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 39 — DPO tasks

Priority: p2 Chapter: Ch.4 – Controller & processor
 Severity: critical Status: fail
 Score: 0/100
 Risk: high
 Gaps

- The provided policy chunks do not contain information regarding the specific tasks and responsibilities of a Data Protection Officer (DPO), such as advising on data protection obligations, monitoring compliance, involvement in Data Protection Impact Assessments (DPIAs), or cooperation with supervisory authorities, as required by GDPR Article 39.

Notes

Article 39 requires DPO tasks to include advising, monitoring compliance, DPIA involvement, and cooperation with the supervisory authority. The provided policy chunks lack any information pertaining to the DPO's role or

tasks.

```
{
  "article_number": 39,
  "article_title": "DPO tasks",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The provided policy chunks do not contain information regarding the specific tasks and responsibilities of a Data Protection Officer (DPO), such as advising on data protection obligations, monitoring compliance, involvement in Data Protection Impact Assessments (DPIAs), or cooperation with supervisory authorities, as required by GDPR Article 39."
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 39 requires DPO tasks to include advising, monitoring compliance, DPIA involvement, and cooperation with the supervisory authority. The provided policy chunks lack any information pertaining to the DPO's role or tasks.",
  "article_material_used": "text"
}
```

Art. 40 — Codes of conduct

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text contains definitions from GDPR Article 4 and does not address codes of conduct or claims of adherence.

```
{
  "article_number": 40,
  "article_title": "Codes of conduct",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions from GDPR Article 4 and does not address codes of conduct or claims of adherence.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 42 — Certification

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text only contains definitions excerpted from Article 4 of the GDPR. Article 42 on certification is not mentioned or addressed.

```
{
  "article_number": 42,
  "article_title": "Certification",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text only contains definitions excerpted from Article 4 of the GDPR. Article 42 on certification is not mentioned or addressed.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 44 — General principle for transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not contain information regarding international data transfers, safeguards, or mechanisms for ensuring the level of protection is not undermined when data is transferred to third countries or international organizations, as required by Article 44.

Evidence

- The policy does not contain any relevant information pertaining to Article 44 of the GDPR, which mandates compliance with Chapter 5 mechanisms for all international transfers of personal data.
- The provided policy chunks ([c7 6194-7394], [c8 7194-8394], [c9 8194-9394], [c10 10194-11394], [c11 10194-11394]) discuss data collection, processing, sharing with third parties for specific purposes, location data, and legal bases for processing within the EU, but do not address international transfers.
- The excerpt from Article 44 of the GDPR clearly states the general principle for transfers, which is not reflected in the policy.

Notes

The policy fails to address the requirements of Article 44 regarding international data transfers. This is a significant gap as it leaves the organization non-compliant with a core principle of the GDPR concerning the protection of personal data when transferred outside the EU/EEA.

```
{
  "article_number": 44,
  "article_title": "General principle for transfers",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not contain information regarding international data transfers, safeguards, or mechanisms for ensuring the level of protection is not undermined when data is transferred to third countries or international organizations, as required by Article 44."
  ],
  "evidence": [
    "The policy does not contain any relevant information pertaining to Article 44 of the GDPR, which mandates compliance with Chapter 5 mechanisms for all international transfers of personal data.",
    "The provided policy chunks ([c7 6194-7394], [c8 7194-8394], [c9 8194-9394], [c10 10194-11394], [c11 10194-11394]) discuss data collection, processing, sharing with third parties for specific purposes, location data, and legal bases for processing within the EU, but do not address international transfers.",
    "The excerpt from Article 44 of the GDPR clearly states the general principle for transfers, which is not reflected in the policy."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy fails to address the requirements of Article 44 regarding international data transfers. This is a significant gap as it leaves the organization non-compliant with a core principle of the GDPR concerning the protection of personal data when transferred outside the EU/EEA.",
  "article_material_used": "text"
}
```

Art. 45 — Adequacy decision transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The policy mentions that personal information may be transferred, processed, and stored outside of the EEA or Switzerland, including in the United States of America. It states that steps are taken to safeguard this information, including ensuring an adequate level of data protection in accordance with E.U. standards. However, it does not specify which third countries are deemed to have an adequate level of protection according to Article 45 of the GDPR, nor does it detail the specific mechanism or assessment used to determine this adequacy. The policy mentions the use of Standard Contractual Clauses (SCCs) and other appropriate

safeguards, which are transfer mechanisms under Article 46, not Article 45 adequacy decisions.

Evidence

- "For European Residents, please note that the personal information we obtain from or about you may be transferred, processed, and stored outside of the EEA or Switzerland for the purposes described in this Privacy Policy, including in the United States of America. We take the privacy of our users seriously and therefore take steps to safeguard your information, including ensuring an adequate level of data protection in accordance with E.U. standards in effect as of the date of this Privacy Policy. These steps include use of the European Commission's Standard Contractual Clauses for transfers of personal information between our group companies, which require all group companies to protect personal information they process from the EEA in accordance with European Union data protection laws. We have implemented similar appropriate safeguards with our third party service providers and partners and further details can be provided upon request."

Notes

The policy does not explicitly reference GDPR Article 45 adequacy decisions for international transfers. Instead, it relies on Standard Contractual Clauses and other safeguards, which fall under Article 46. While the US is mentioned as a destination, no adequacy decision for the US is cited or confirmed. This requires a manual review to confirm if any adequacy decisions are relevant and being relied upon, or if reliance is solely on Article 46 mechanisms. Given the mention of the US and the lack of specific adequacy confirmation, there's a risk that transfers might not be covered by an adequacy decision if one is being assumed or implied.

```
{
  "article_number": 45,
  "article_title": "Adequacy decision transfers",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy mentions that personal information may be transferred, processed, and stored outside of the EEA or Switzerland, including in the United States of America. It states that steps are taken to safeguard this information, including ensuring an adequate level of data protection in accordance with E.U. standards. However, it does not specify which third countries are deemed to have an adequate level of protection according to Article 45 of the GDPR, nor does it detail the specific mechanism or assessment used to determine this adequacy. The policy mentions the use of Standard Contractual Clauses (SCCs) and other appropriate safeguards, which are transfer mechanisms under Article 46, not Article 45 adequacy decisions."
  ],
  "evidence": [
    "\"For European Residents, please note that the personal information we obtain from or about you may be transferred, processed, and stored outside of the EEA or Switzerland for the purposes described in this Privacy Policy, including in the United States of America. We take the privacy of our users seriously and therefore take steps to safeguard your information, including ensuring an adequate level of data protection in accordance with E.U. standards in effect as of the date of this Privacy Policy. These steps include use of the European Commission's Standard Contractual Clauses for transfers of personal information between our group companies, which require all group companies to protect personal information they process from the EEA in accordance with European Union data protection laws. We have implemented similar appropriate safeguards with our third party service providers and partners and further details can be provided upon request.\""
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy does not explicitly reference GDPR Article 45 adequacy decisions for international transfers. Instead, it relies on Standard Contractual Clauses and other safeguards, which fall under Article 46. While the US is mentioned as a destination, no adequacy decision for the US is cited or confirmed. This requires a manual review to confirm if any adequacy decisions are relevant and being relied upon, or if reliance is solely on Article 46 mechanisms. Given the mention of the US and the lack of specific adequacy confirmation, there's a risk that transfers might not be covered by an adequacy decision if one is being assumed or implied.",
  "article_material_used": "text"
}
```

Art. 46 — Transfers with safeguards

Priority: p3 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: missing

Score: 0/100

Notes

The provided text does not contain any mention of Standard Contractual Clauses (SCCs) or Binding Corporate Rules (BCRs), which are the primary safeguards for international data transfers under Article 46 of the GDPR.

The text focuses on general data collection, processing, and consent mechanisms within the service, but does not address the specific requirements for transferring data outside the EEA.

```
{
  "article_number": 46,
  "article_title": "Transfers with safeguards",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any mention of Standard Contractual Clauses (SCCs) or Binding Corporate Rules (BCRs), which are the primary safeguards for international data transfers under Article 46 of the GDPR. The text focuses on general data collection, processing, and consent mechanisms within the service, but does not address the specific requirements for transferring data outside the EEA.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 47 — Binding corporate rules

Priority: p3 **Chapter:** Ch.5 – Transfers to third countries

Severity: critical **Status:** missing

Score: 0/100

Notes

The provided text discusses data security, privacy policies, and consumer rights under CCPA and Nevada law, but it does not contain any specific mention or discussion of "Binding Corporate Rules (BCRs)" or the process of auto-flagging or verifying DPA approval for BCR claims.

```
{
  "article_number": 47,
  "article_title": "Binding corporate rules",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text discusses data security, privacy policies, and consumer rights under CCPA and Nevada law, but it does not contain any specific mention or discussion of \"Binding Corporate Rules (BCRs)\" or the process of auto-flagging or verifying DPA approval for BCR claims.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 49 — Derogations

Priority: p4 **Chapter:** Ch.5 – Transfers to third countries

Severity: warning **Status:** triggered (HIL)

Notes

The policy mentions 'vital interests' as a potential legal basis for processing, which falls under GDPR Article 49 derogations. Therefore, it must be manually reviewed.

```
{
  "article_number": 49,
  "article_title": "Derogations",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p4",
  "p4_triggered": true,
  "needs_human_review": true,
  "evidence": "In some cases, we may also have a legal obligation to collect personal information from you or may otherwise need the personal information to protect your vital interests or those of another person (for instance, to prevent, investigate, or identify possible wrongdoing in connection with the Service or to comply with legal obligations).",
  "what_to_review": [
    "Verify if any data processing relies on vital interests.",
    "Confirm the specific circumstances where vital interests are invoked.",
    "Check for explicit documentation or justification for using vital interests as a legal basis."
  ],
}
```

```

"notes": "The policy mentions 'vital interests' as a potential legal basis for processing,
which falls under GDPR Article 49 derogations. Therefore, it must be manually reviewed.",
"status": null,
"gaps": [],
"risk": null
}

```

Art. 77 — Right to lodge a complaint

Priority: p2 Chapter: Ch.8 – Remedies, liability & penalties

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not inform data subjects of their right to lodge a complaint with a supervisory authority.
- The policy does not inform data subjects how to lodge a complaint with a supervisory authority.
- The policy does not inform data subjects of their right to be informed about the progress and outcome of their complaint, including the possibility of judicial remedy.
- The policy does not inform data subjects how they will be informed about the progress and outcome of their complaint.

Notes

The policy does not mention or describe the data subject's right to lodge a complaint with a supervisory authority, nor does it detail the process for doing so. Furthermore, there is no information provided regarding the data subject's right to be informed about the progress and outcome of such a complaint.

```

{
  "article_number": 77,
  "article_title": "Right to lodge a complaint",
  "chapter": "Ch.8 – Remedies, liability & penalties",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not inform data subjects of their right to lodge a complaint with a supervisory authority.",
    "The policy does not inform data subjects how to lodge a complaint with a supervisory authority.",
    "The policy does not inform data subjects of their right to be informed about the progress and outcome of their complaint, including the possibility of judicial remedy.",
    "The policy does not inform data subjects how they will be informed about the progress and outcome of their complaint."
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy does not mention or describe the data subject's right to lodge a complaint with a supervisory authority, nor does it detail the process for doing so. Furthermore, there is no information provided regarding the data subject's right to be informed about the progress and outcome of such a complaint.",
  "article_material_used": "text"
}

```

Art. 85 — Freedom of expression

Priority: p4 Chapter: Ch.9 – Specific processing situations

Severity: warning Status: triggered (HIL)

Notes

The policy text does not contain any mention of exemptions related to freedom of expression, journalism, academic, or artistic purposes. Therefore, the condition described in the scenario is not met by this policy.

```

{
  "article_number": 85,
  "article_title": "Freedom of expression",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p4",
  "p4_triggered": true,
  "needs_human_review": true,
  "evidence": "The scenario refers to 'journalism/academic/artistic derogation claims', which are not mentioned in the provided Yelp Privacy Policy text. Therefore, this policy does not contain content relevant to Article 85.",
  "what_to_review": [
    "Article 85 relates to freedom of expression, journalism, academic, and artistic

```

```

derogations.",
  "The provided policy text does not mention any of these derogations.",
  "Therefore, no further review is needed for this article based on this policy."
],
"notes": "The policy text does not contain any mention of exemptions related to freedom of
expression, journalism, academic, or artistic purposes. Therefore, the condition described in
the scenario is not met by this policy.",
"status": null,
"gaps": [],
"risk": null
}

```

Art. 88 — Employment context

Priority: p2 **Chapter:** Ch.9 – Specific processing situations

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly address the processing of employee data for recruitment, health and safety, or termination within the employment context.
- Specific rules for the employment context, as mentioned in Article 88(1), are not detailed, especially concerning safeguarding employee dignity, legitimate interests, and fundamental rights (Article 88(2)).
- There is no mention of suitable and specific measures for transparency of processing, transfer of data within a group, or monitoring systems at the workplace for employees (Article 88(2)).

Evidence

- Policy chunks c7, c8, c9, c10, and c11 primarily focus on the processing of personal data for users of the Yelp service in general, not specifically in an employment context. They cover areas like SMS logging, transaction processing, location data, and cross-device information. While some mention of monitoring communications for quality purposes exists (c7), it is not framed within the employee-employer relationship as per Article 88.
- The provided policy text does not contain any clauses related to recruitment, employee contract management, workplace equality and diversity, health and safety at work, or specific procedures for employee termination.

Notes

The provided policy chunks and reference material do not adequately cover the specific requirements of GDPR Article 88 concerning the processing of personal data in the employment context. The policy focuses on general user data processing and lacks provisions for employee-specific data handling like recruitment, contract performance, health and safety, and termination. Crucially, it misses requirements for safeguarding employee rights, transparency, data transfers within a group, and workplace monitoring specific to employment.

```

{
  "article_number": 88,
  "article_title": "Employment context",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly address the processing of employee data for recruitment,
    health and safety, or termination within the employment context.",
    "Specific rules for the employment context, as mentioned in Article 88(1), are not detailed,
    especially concerning safeguarding employee dignity, legitimate interests, and fundamental
    rights (Article 88(2)).",
    "There is no mention of suitable and specific measures for transparency of processing,
    transfer of data within a group, or monitoring systems at the workplace for employees (Article
    88(2))."
  ],
  "evidence": [
    "Policy chunks c7, c8, c9, c10, and c11 primarily focus on the processing of personal data
    for users of the Yelp service in general, not specifically in an employment context. They cover
    areas like SMS logging, transaction processing, location data, and cross-device information.
    While some mention of monitoring communications for quality purposes exists (c7), it is not
    framed within the employee-employer relationship as per Article 88.",
    "The provided policy text does not contain any clauses related to recruitment, employee
    contract management, workplace equality and diversity, health and safety at work, or specific
    procedures for employee termination."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided policy chunks and reference material do not adequately cover the
  specific requirements of GDPR Article 88 concerning the processing of personal data in the

```

employment context. The policy focuses on general user data processing and lacks provisions for employee-specific data handling like recruitment, contract performance, health and safety, and termination. Crucially, it misses requirements for safeguarding employee rights, transparency, data transfers within a group, and workplace monitoring specific to employment.",
"article_material_used": "text"
}

Appendix — human review queue

```
[
  {
    "kind": "p3_verify",
    "article_number": 8,
    "article_title": "Child's consent",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text defines 'consent' generally but does not specifically address
the conditions for a child's consent or parental consent as required by GDPR Article 8.
Therefore, the policy does not materially mention or address the specific topic of child's
consent."
  },
  {
    "kind": "p3_verify",
    "article_number": 10,
    "article_title": "Criminal convictions data",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains only definitions from Article 4 of the GDPR and does
not address Article 10 on criminal convictions data."
  },
  {
    "kind": "p3_verify",
    "article_number": 19,
    "article_title": "Notification on rectification/erasure",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided policy text does not contain information regarding downstream
notification to recipients upon rectification or erasure of personal data. The policy focuses
on the collection, use, and disclosure of user information and account management."
  },
  {
    "kind": "p3_verify",
    "article_number": 25,
    "article_title": "Privacy by design and default",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy mentions enhancing security and complying with legal obligations, but
does not specifically address privacy by design or default principles. The provided chunks
focus on data collection, usage, and user-configurable settings rather than embedding privacy
into the design and default configurations of the service."
  },
  {
    "kind": "p3_verify",
    "article_number": 26,
    "article_title": "Joint controllers",
    "policy_present": true,
    "implementation_unverified": true,
    "evidence": "The policy excerpt defines 'controller' as 'the natural or legal person,
public authority, agency or other body which, alone or jointly with others, determines the
purposes and means of the processing of personal data'. This directly addresses the concept of
joint controllership as covered in GDPR Article 26.",
    "notes": null
  },
  {
    "kind": "p3_verify",
    "article_number": 27,
    "article_title": "Representatives (non-EU)",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text only contains definitions from Article 4 of the GDPR and does
not mention Article 27 or the requirement for non-EU companies to appoint a representative."
  },
  {
    "kind": "p3_verify",
    "article_number": 32,
    "article_title": "Security of processing",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": null
  },
  {
    "kind": "p3_verify",
```

```

    "article_number": 33,
    "article_title": "Breach notification to SA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not contain any mention of data breach notification
procedures to a supervisory authority or the establishment of internal breach logs. It focuses
on general data collection, use, and disclosure policies."
  },
  {
    "kind": "p3_verify",
    "article_number": 34,
    "article_title": "Breach communication to data subject",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not contain any information about breach notification
procedures to data subjects. The chunks focus on data collection, usage, and user account
management. There is no mention of handling personal data breaches or communicating them to
individuals."
  },
  {
    "kind": "p3_verify",
    "article_number": 35,
    "article_title": "DPIA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text is a privacy policy that outlines data collection, usage, and
disclosure practices. However, it does not contain any specific mention or discussion of Data
Protection Impact Assessments (DPIAs) or related procedures, which is the core subject of GDPR
Article 35."
  },
  {
    "kind": "p3_verify",
    "article_number": 38,
    "article_title": "DPO position",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy document does not mention or address the role, position, or
independence of a Data Protection Officer (DPO) as required by GDPR Article 38. It focuses on
general data privacy practices, consumer rights under CCPA and Nevada law, and data transfer
mechanisms."
  },
  {
    "kind": "p3_verify",
    "article_number": 40,
    "article_title": "Codes of conduct",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions from GDPR Article 4 and does not address
codes of conduct or claims of adherence."
  },
  {
    "kind": "p3_verify",
    "article_number": 42,
    "article_title": "Certification",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text only contains definitions excerpted from Article 4 of the GDPR.
Article 42 on certification is not mentioned or addressed."
  },
  {
    "kind": "p3_verify",
    "article_number": 46,
    "article_title": "Transfers with safeguards",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not contain any mention of Standard Contractual Clauses (
SCCs) or Binding Corporate Rules (BCRs), which are the primary safeguards for international
data transfers under Article 46 of the GDPR. The text focuses on general data collection,
processing, and consent mechanisms within the service, but does not address the specific
requirements for transferring data outside the EEA."
  },
  {
    "kind": "p3_verify",
    "article_number": 47,
    "article_title": "Binding corporate rules",
    "policy_present": false,

```

```

    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text discusses data security, privacy policies, and consumer rights
under CCPA and Nevada law, but it does not contain any specific mention or discussion of \
\"Binding Corporate Rules (BCRs)\" or the process of auto-flagging or verifying DPA approval for
BCR claims."
  },
  {
    "kind": "p4_conditional",
    "article_number": 49,
    "article_title": "Derogations",
    "what_to_review": [
      "Verify if any data processing relies on vital interests.",
      "Confirm the specific circumstances where vital interests are invoked.",
      "Check for explicit documentation or justification for using vital interests as a legal
basis."
    ],
    "evidence": "In some cases, we may also have a legal obligation to collect personal
information from you or may otherwise need the personal information to protect your vital
interests or those of another person (for instance, to prevent, investigate, or identify
possible wrongdoing in connection with the Service or to comply with legal obligations).",
    "notes": "The policy mentions 'vital interests' as a potential legal basis for processing,
which falls under GDPR Article 49 derogations. Therefore, it must be manually reviewed."
  },
  {
    "kind": "p4_conditional",
    "article_number": 85,
    "article_title": "Freedom of expression",
    "what_to_review": [
      "Article 85 relates to freedom of expression, journalism, academic, and artistic
derogations.",
      "The provided policy text does not mention any of these derogations.",
      "Therefore, no further review is needed for this article based on this policy."
    ],
    "evidence": "The scenario refers to 'journalism/academic/artistic derogation claims', which
are not mentioned in the provided Yelp Privacy Policy text. Therefore, this policy does not
contain content relevant to Article 85.",
    "notes": "The policy text does not contain any mention of exemptions related to freedom of
expression, journalism, academic, or artistic purposes. Therefore, the condition described in
the scenario is not met by this policy."
  }
]

```